

NDG Architects

INTEROFFICE MEMO

Date: 22 February 2021
To: Belinda Carter
Cc:
From: Chan Tsz Wai, Sam
Re: **Beyond Covid-19 and the lessons learned**

Dear Belinda,

Refer to your memo about our lessons learned beyond Covid-19, I drafted an agenda telling my thoughts:

Agenda

1. Challenges in home working and supports by the practice

Challenges

- Difficulties in time management, recording all progress, and reviewing with colleagues, clients, contractors and consultants
- Difficulties communications because we discuss via drawings, it is difficult to draw during online meetings
- Poor internet network connections because some colleagues' home may not have well-connected internet network and cannot access office's server
- Impossible to keep attending CDP in office and difficult to organise at home
- Not every colleagues has a computer at home, or no suitable computer to use for doing Revit models
- Impossible to use office resources at home, for examples, no printer/photocopier/printed regulations booklets to use at home, affect work progress badly
- Not easy to ensure having a clear understanding about the expectations on us for delivery
- Difficult to maintain regular contact with our line manager daily

Supports by our firm

- IT support for setting up remote desktop so that we can use the computer to access the office server
- Provide suitable computers to work remotely
- IT support for online meetings, email re-addressing, connecting the personal computer to office computer

ARB - Standard 4 Manage your business competently

'4.3 You should ensure that adequate security is in place to safeguard both paper and electronic records for your clients, taking full account of data protection legislation, and that clients' confidential information is safeguarded.'

Though it is possible for us to access the server in office later, we have to follow ARB standard 4 to protect our clients' confidential information.

2. Effectiveness of communications with other parties and improvements

Stage 0 - 1 • Site visit and meetings to establish the programme and brief • Identifying project constraint • Appointing the design team and commissioning surveys	To ourselves, contractor, client and consultants • Online meetings for most of discussions • Use emails to record any formal documents, such as letters of appoints • Discuss programmes/procurement strategies via email in order to keep all written records • Better to issue a minutes to all related parties for avoid misunderstanding and allocating the follow-up actions • Suggest to use mobile app, such as WhatsApp or telegram, to contact colleagues, clients and consultants for gaining immediate reactions. • During site visit, other than taking photos, it is better to record it as a video for sharing to other parties in order to reduce the times of site visit, and keep the visit in record. • Contractor should set up and record online meetings during our/client's site meeting, so that all other parties can attend or watch the records for having most updated information about the design and the construction site progress.
Stage 2 • Review survey information • Developing concept design in coordination with Design Team • Pre-application discussion with Local planning authority	
Stage 3 • Revision of design based on Pre-application discussions • Development of design with input from Design Team • Prepare documents and apply for consents and planning applications • Discharge of planning conditions	
Stage 4 • Technical design development with input from Design Team • Prepare documents and apply for building regulations approvals • Preparation of tender documents, tender analysis and tender recommendations	
Stage 5 - 6 • Administrrating the building contract - attending meetings, site visits/inspections and issuing instructions/certificates	

3. Target client profile and potential sectors in future

- Considering about the stability of funding, I suggested to bid more projects from public sectors, such as those funded by council or community projects.
- Comparatively, the project duration in early is shorter which ensures our income comes earlier. I suggest our firm acts as a designer from Stage 0 to 4 because the projects are not easily cased delays or put on hold.
- Shift our practice development from providing full service projects to local small projects, such as alteration, interior design.
- Reduce cross-region projects just in case the lockdown happens again
- Office resources re-allocation, such as the future employees to be hired, because our practice may spealise in other type of projects

4. Attending CPD

ARB - Standard 2 Competence

'2.4 You are expected to keep your knowledge and skills relevant to your professional work up to date and be aware of the content of any guidelines issued by ARB from time to time.'

RIBA - Principle 2: Competence & Principle 3: relationships

'1.13 Practising Chartered Members must comply with any current RIBA scheme or guidance for continuing professional development.'

'6.3 Members shall pay their staff fairly and facilitate and encourage their professional development.'

Online CDP

It is necessary to attend and organise our CDP. When working remotely, I noticed RIBA organise some CDP online. I suggest our practice can follow to arrange online CDP in our practice and record it to share with colleagues later, so that they can watch it at home or on the way to home/office. We have to make it easy and efficient to all colleagues.

5. Positive measures for the future

- Reduce face-to-face meetings helps a lot because it seems Covid-19 may affect us a bit longer, having a safe and health work environment is crucial to all of us.
- Online meeting and work remotely does not affect our work progress, it is good to make sure we are in touch with our colleagues and other parties immediately.
- IT support is essential for us to access the office server so that we can have any immediate follow-ups.
- The mentioned business strategies are important because the pandemic makes us to re-think how to keep our cash-flow even if some projects delay or put on hold.

Please do not hesitate to contact me if you would like to have any clarification on any of these issues or wish to discuss the project further.

Best regards,

Sam Chan
Part II Assistant

Reference:

<https://www.gov.uk/government/publications/review-of-two-metre-social-distancing-guidance/review-of-two-metre-social-distancing-guidance>

<https://www.architecture.com/knowledge-and-resources/knowledge-landing-page/riba-covid-19-checklist-for-architects>

Architects Code: Standards of Conduct and Practice

RIBA Code of Practice

NDG Architects

Old Mill Building
Madchester
MX1 9DS

DRAFT

22 February 2021

Mr Simon Piper

Dockside Developments Limited

DDL Tower Sea View Annexe
9/F Flowmouth
FL2 5RY

Dear Mr Piper

Re: DZZ Heights Residential Development, Lynton: External Cladding

I am writing to reply about the EWS1 Form we CANNOT sign off because of the following reasons:

1. Ineligible to sign the form

'The form is intended for recording in a consistent manner what assessment has been carried out for the external wall construction of residential apartment buildings where the highest floor is 18m or more above ground level or where specific concerns exist. It is to be completed by a competent person with the levels of expertise as described in Notes 2 and 3 below.

Note 2

For Option A, the signatory would need **the expertise to identify the relevant materials** within the external wall and attachments and whether **fire resisting cavity barriers and fire stopping have been installed correctly**. However, this would not necessarily include the need for expertise in fire engineering. The signatory should be a member of a relevant professional body within the construction industry.

Note 3

For Option B the signatory would need expertise in the assessment of the fire risk presented by external wall materials and should be a member of a relevant professional body that deals with fire safety in the built environment. This could be a **Chartered Engineer with the Institution of Fire Engineers or equivalent**.'

As a Chartered Architect, Our practice/myself is ineligible to sign the form. It is advised you should contact a Chartered Surveyor or Engineer who expertise in this area to sign the form.

It is advised that you should appoint a professional to conduct a test on the external cladding because the Grenfell Tower independent expert advisory panel in 2017 advised that further testing should be carried out by BRE to establish how different types of ACM cladding behave in a fire in combination with different types of insulation. The tests, carried out in accordance with BS 8414, involve building complete cladding systems 9 m tall and then subjecting them to a severe fire.

Though I confirmed we designed this cladding system, which complied with 2010 Building Regulations, it is advised to review the most updated Building Regulations, Approved Document Part B (2019 edition incorporating 2020 amendment) for ensuring the safety of the cladding system.

2. Unable to provide as-built drawings

In JCT SBC/Q 2016 clause 2.40, as-built contractor's design drawings, in relation to information for the health and safety file, was provided by the contract to the employer before practical completion.

Considering the As Built drawings are a Contractor's Designed Portion, it is an agreement for the contractor to design specific parts of the works.

Copyright and Use

Clause 2.41

'.....all rights including (without limiting) copyright in all Contractor's Design Documents shall remain vested in the Contractor.'

'.....That licence shall enable the Employer to copy and use the Contractor's Design Documents for an extension of the Works but shall not include any right or licence to reproduce the designs contained in them for any such extension.'

The quoted clauses stated as an architect, we are unable to provide you a set of As-Built drawings, but it is advised you should contact the previous owner and the contractor upon this issue.

Should you have any queries, please do not hesitate to contact me.

Yours faithfully,

Sam Chan
Part II Assistant

Reference:

https://www.designingbuildings.co.uk/wiki/ACM_cladding

<https://www.ansteyhorne.co.uk/ht-faq/new-faq-question-6/#ah-form>

<https://www.rics.org/uk/news-insight/latest-news/fire-safety/cladding-qa/>

<https://www.rics.org/globalassets/rics-website/ews1-external-wall-fire-review-final-2.pdf>

https://www.designingbuildings.co.uk/wiki/Contractor%27s_design_portion

NDG Architects

MEMO

Date: 23 February 2021
To: Sue Allen
Cc:
From: Chan Tsz Wai, Sam
Re: **New House for Alec Smart**

Dear Sue

Refer to your email about the captioned project, I am here explaining the questions you made:

The status of the DRA at the point we hand it to the client's specialist civil engineering D+B contractor (who, for this element will also be the Principal Contractor)

Providing pre-construction information

105 Pre-construction information is information already in the client's possession or which is reasonably obtainable. It must be relevant, have an appropriate level of detail and be proportionate to the nature of risks involved in the project.

106 The client has responsibility for pre-construction information (see paragraphs 42–43). The principal designer must help the client bring together the information the client already holds (such as any existing health and safety file or asbestos survey). The principal designer should then: (a) assess the adequacy of existing information to identify any gaps in the information which it is necessary to fill; (b) provide advice to the client on how the gaps can be filled and help them in gathering the necessary additional information; and (c) provide, as far as they are able to, the additional information promptly and in a convenient form to help designers and contractors who: (i) are being considered for appointment; or (ii) have already been appointed, to carry out their duties.

Guidance 11 Health and Safety Executive Managing health and safety in construction Page 34 of 90 Appendix 2 gives further guidance on the requirements relating to pre-construction information. Appendix 5 shows how pre-construction information relates to and influences other types of information during a construction project involving more than one contractor.

Liaising with the principal contractor

107 The principal designer must liaise with the principal contractor for the duration of their appointment. During the pre-construction phase this must cover sharing information that may affect the planning, management, monitoring and coordination of the construction phase – in particular, the information needed by the principal contractor to prepare the construction phase plan (see Appendix 3). Liaison should also extend into the construction phase to deal with ongoing design and obtaining information for the health and safety file. This could be done by holding regular progress meetings with the principal contractor.

108 If the principal designer's appointment finishes before the end of the project, they must ensure that the principal contractor has all the relevant information so that the principal contractor: (a) is aware of the risks which have not been eliminated in the designs; (b) understands the means employed to reduce or control those risks; and (c) understands the implications for implementing the design work for the rest of the project. The principal designer should also arrange a handover of the health and safety file to the principal contractor and make them aware of any issues to take into account when reviewing, updating and completing it.

Who else we might involve in putting together the initial DRA?

Dutyholders

Main duties

Domestic clients - who have construction work carried out on their own home (or the home of a family member) that is not done as part of a business.	Though in scope of CDM 2015, their client duties are normally transferred to: • The contractor for single contractor projects • The principal contractor for projects with more than one contractor However, the domestic client can instead choose to have a written agreement with the principal designer to carry out the client duties.
Principal designers (NDG) Designers appointed by the client in projects involving more than one contractor. They can be an organisation or an individual with sufficient knowledge, experience and ability to carry out the role.	Plan, manage, monitor and coordinate health and safety in the pre-construction phase of a project. This includes: • Identifying, eliminating or controlling foreseeable risks • Ensuring designers carry out their duties Prepare and provide relevant information to other dutyholders. Liaise with the principal contractor to help in the planning, management, monitoring and coordination of the construction phase.
Designers (NDG) Organisations or individuals who as part of a business, prepare or modify designs for a building, product or system relating to construction work.	When preparing or modifying designs, eliminate, reduce or control foreseeable risks that may arise during: • Construction • The maintenance and use of a building once it is built Provide information to other members of the project team to help them fulfil their duties.
Principal contractors Contractors appointed by the client to coordinate the construction phase of a project where it involves more than one contractor.	Plan, manage, monitor and coordinate health and safety in the construction phase of a project. This includes: • Liaising with the client and principal designer • Preparing the construction phase plan • Organising cooperation between contractors and coordinating their work Make sure: • Suitable site inductions are provided • Reasonable steps are taken to prevent unauthorised access • Workers are consulted and engaged in securing their health and safety • Welfare facilities are provided

What steps we need to take after the client appoints the contractor, but before they start on site and who else we need to involve?

Start of project

- Client to check what documents are already in their possession that will be relevant to the project, eg an existing health and safety file.

Pre-construction information (PCI) Client and principal designer (PD) must work together to:

- assess adequacy of existing information (eg existing health and safety file from earlier project or asbestos survey);
- agree arrangements to fill gaps in existing information;
- provide sufficient information to designers and contractors

Construction phase plan

Client to ensure the plan is drawn up before construction phase begins.

PC to draw up the plan on the basis of:

- pre-construction information; and
- information provided with designs.

PD to help the PC prepare the plan.

PC to:

- ensure the plan is appropriately reviewed, updated and revised;
- address any significant changes to risks involved and controls put in place

Where the client fits in, given NDG is Principal Designer but not Contract Administrator?

Generally the client / employer must:

- Ensure the project team is adequately resourced
- Ensure a suitable management plan is in place
- Ensure welfare facilities are suitable
- Ensure workplace is designed in a suitable way
- May employ others to deal with above, but ultimately responsible
- Check handover arrangements at completion
- Keep Health and Safety File available for future use

What needs to happen at the completion of the retaining wall?

At the completion, there is a Health and safety file:

- Client to ensure the Principal Designer prepares the file;
- Principal Designer to prepare the file in cooperation with the Principal Contractor;
- Principal Designer to ensure the file is appropriately updated, reviewed and revised;
- Principal Contractor to provide Principal Designer with relevant information for inclusion in the file;
- Principal Designer to pass the file to the client at the end of the project;
- Principal Designer to pass the file to the Principal Contractor if the Principal Designer's appointment ends before the project finishes.

End of project:

- Client to retain the health and safety file and ensure it is available for any subsequent construction work on the building.
- If the client disposes of their interest in the building, they must provide the file to anyone who takes on the client duties.

Can you see any other safety or regulatory issues associated with all this?

Yes.

- Approved Document Part A - Retaining structure
- Party Wall Act 1996
- Consulting employees on health and safety: A brief guide to the law Leaflet INDG232(rev2) HSE Books 2013 www.hse.gov.uk/pubns/indg232.htm
- Getting specialist help with health and safety Leaflet INDG420(rev1) HSE Books 2011 www.hse.gov.uk/pubns/indg420.htm
- PAS 91:2013 Construction related procurement. Prequalification questionnaires British Standards Institution www.shop.bsigroup.com/Navigate-by/PAS/PAS-91-2013/
- Workplace health, safety and welfare. Workplace (Health, Safety and Welfare) Regulations 1992. Approved Code of Practice and guidance L24 (Second edition) HSE Books 2013 ISBN 978 0 7176 6583 9 www.hse.gov.uk/pubns/books/l24.htm
- Construction phase plan (CDM 2015): What you need to know as a busy builder Construction Information Sheet CIS80 HSE Books 2015 www.hse.gov.uk/pubns/cis80.pdf
- CDM wizard CITB smartphone app www.citb.co.uk/cdmregs
- Provision of welfare facilities during construction work Construction Information Sheet CIS59 HSE Books 2010 www.hse.gov.uk/pubns/cis59.htm

Please do not hesitate to contact me if you would like to have any clarification on any of these issues or wish to discuss the project further.

Best regards,

Sam Chan
Part II Assistant

QUESTION 3
DRA Template (Word Document Version)

	Activity/Hazard	Action Required	Owner	Status
1	accessing and excavation	Secure scaffolding and provide fall restraint systems. Appropriate enclosure to adjacent footpaths to be provided. Agree scaffolding requirements at contract stage, including appropriate load rating and provision of loading bays. Contractor's supervisor to check with the site manager that the correct scaffold is provided and inspected	Structural engineer	A
	Excavation noise	Noise barrier should be set	Contract or	A
3	Site traffic and access	Appropriate signage, supervision and mirrors for oncoming traffic provided. Coordination with highways authority, guidance to be included in the Health & Safety File	Contract or	A
4	new drainage maintenance below ground	Where are the access locations? Contractor to allow for these to be at locations not on the public footpath to help future maintenance arrangements. Working in confined spaces underground	MEP engineer	A
5	Day to day maintenance and service operations route to avoid conflicting with the general public during visiting hours	To plan a suitable route and discuss the scheduling of maintenance hours with sign off with the zoo management. Allow only after visiting hours	Architect and client	A
6	new drainage maintenance below ground	Where are the access locations? Contractor to allow for these to be at locations not on the public footpath to help future maintenance arrangements. Working in confined spaces underground	MEP engineer	A
	Working at height above a public thoroughfare, obstructing the pavement with an access platform with a risk of injury due to materials / tools falling from above	Contractor to agree with Local Authority that alternative route can be used by the public whilst works take place	Contract or	A
Status				
R : Red = Hazardous procedures, processes and products that should be eliminated where possible				

	A : Amber = Procedures, processes and products to be eliminated or reduced as far as possible
	G : Green = Procedures, processes and products to be encouraged

NDG Architects

MEMO **CONFIDENTIAL**

Date: 24 February 2021
To: Belinda Carter
Cc:
From: Chan Tsz Wai, Sam
Re: A tough year!

Dear Belinda,

Refer to your email, I have some opinions as follows:

1. In the coming 2 month - Downsize

We have a lot of staff furloughed, I think it is likely to have a redundancy:

The first step is to ask for volunteers, however you should reserve the right not to accept any of these offers as it may be from a key member of staff.

Evaluate our staff with no bias and set up a clear selection criteria, such as the basis of performance and attendance. Or reduce a number of administration staff because of the drop of incoming projects/workload.

Paid time off work to look for another job if he/she has completed at least two years continuous service. Redundancy pay if he/she has completed at least two years' continuous service. And the contractual or statutory notice period, or pay in lieu of notice.

Considering the size, location of office, we can set up our workplace in the outskirt of London. Many co-working spots to rent and it costs £300 to £1500 per month for a small space.

2. Next 3 - 4 months - New design and build and community project

It is good to know there is some possibility to secure 24 month income. However, due to the downsize in terms of cash-flow and human resources, we surely face a difficulty to deliver the design and give information to the contractor promptly.

I suggest we can ask staff to be volunteers instead of redundancy. Meanwhile, I believe there are a lot of students/graduates looking for internships, comparatively their income would be much lower than our permanent staffs, they are sort of 'budget labour'.

To be remind, as RIBA advised, all internships should be paid minimum wage. No more unpaid internship.

3. Newt 6 months

It is likely to have 2 projects to start again. Given only a few people in the practice, selected across the various layers of experience, I recommend you to consider restructure our practice in terms of human resources. It is easier to organise the practice with a few experienced staff and replace middle level staffs with entry level staff in order to pay less income and remain a certain of supervisions in the office about work progress.

4. Long term

In order to remain the cash-flow, I suggest to re-think about target client profile and potential sectors in future.

Considering about the stability of funding, I suggested to bid more projects from public sectors, such as those funded by council or community projects.

Comparatively, the project duration in early is shorter which ensures our income comes earlier. I suggest our firm acts as a designer from Stage 0 to 4 because the projects are not easily cased delays or put on hold.

Shift our practice development from providing full service projects to local small projects, such as alteration, interior design.

Reduce cross-region projects just in case the lockdown happens again.

Office resources re-allocation, such as the future employees to be hired, because our practice may specialise in other type of projects

Please do not hesitate to contact me if you would like to have any clarification on any of these issues or wish to discuss the project further.

Best regards,

Sam Chan
Part II Assistant

Reference:

<https://www.architectsjournal.co.uk/archive/riba-and-archaos-demand-minimum-pay-for-working-students>

Start up guide London

NDG Architects

EMAIL

Date: 26 February 2021
 To: **Micheal Hart**
 Cc:
 From: Chan Tsz Wai, Sam
 Re: **New Sports Centre at Strange Hill School, Madchester**

Attachment: **Draft email to Timothy East**

Dear Micheal

Refer to your email, here are my thoughts on the matters and the draft email to Timothy East is attached.

1. Formal Architect's Instruction Issuance

Clause 3.12

'Where the Architect/Contractor Administrator gives an instruction otherwise than in writing, it shall be of no immediate effect but the Contractor shall confirm its terms in writing to the Architect/Contractor Administrator within 7 days....'

I suggest to issue a formal AI in writing to the contractor immediately so that our instruction takes immediate effect to the contractor to remove and re-construct the wall. And the valuation due is at the end of this week, an immediate effect on this defect is critical.

2. No Cost Implication

Clause 2.38

'...the defects, shrinkages and other faults shall at no cost to the Employer to make good by the Contractor.'

It is wise to contact with the cost consultant, but I believe there is no cost implication upon this AI issuance because it states the contractor to make good of the defect at no cost.

3. Impossible delay caused

Clause 2.27

'..... the progress of the Works or any Section is being or is likely to be delayed the Contractor shall forthwith give notice to the Architect/Contractor Administrator of the material circumstances, including the cause or causes of the delay...'

'The Contractor shall forthwith notify the Architect/Contractor Administrator of any material change in the estimated delay....'

According the quoted clauses, the contractor shall notify us if there is any delay upon our instruction.

4. Specification

Clause 2.2

'Where the Works include a Contractor's Designed Portion, the Contractor shall:

....complete the design for the Contractor's Designed Portion, including the selection of any specifications for the kinds and standards of the materials, goods and workmanship to be used in the CDP....

....comply with the Architect/Contractor Administrator's directions for the integration of the design of the CDP with the design of the Works as whole.....'

It is good to clearly cross references to workshop and the standards, but the contractor is also responsible for cross-checking and notify us if there is any questions and issues.

Please do not hesitate to contact me if you would like to have any clarification on any of these issues or wish to discuss the project further.

Best regards,

Sam Chan
Part II Assistant

Reference:
JCT SBC/Q 2016
Guide to JCT SBC/Q 2016

NDG Architects

EMAIL

Date: 26 February 2021
 To: **Timothy East**
 Cc:
 From: Chan Tsz Wai, Sam
 Re: New Sports Centre at Strange Hill School, Madchester

Dear Mr East

Refer to your email about the captioned project, I am responding your concerns as follows and the points are made based on our Building Contract JCT SBC/Q 2016:

1. Formal Architect's Instruction Issuance

Clause 3.12

'Where the Architect/Contractor Administrator gives an instruction otherwise than in writing, it shall be of no immediate effect but the Contractor shall confirm its terms in writing to the Architect/Contractor Administrator within 7 days....'

A formal AI in writing to the contractor will be immediately issued so that our instruction takes immediate effect to the contractor to remove and re-construct the wall. And the valuation due is at the end of this week, I believe this instruction will not cause delays.

Clause 2.27

'..... the progress of the Works or any Section is being or is likely to be delayed the Contractor shall forthwith give notice to the Architect/Contractor Administrator of the material circumstances, including the cause or causes of the delay...'

'The Contractor shall forthwith notify the Architect/Contractor Administrator of any material change in the estimated delay....'

According the quoted clauses, the contractor shall notify us if there is any delay upon our instruction.

2. No Cost Implication

Clause 2.38

'...the defects, shrinkages and other faults shall at no cost to the Employer to make good by the Contractor.'

Micheal has already advised the cost consultant to omit any costs associated with the facing brickwork, so I believe there is no cost implication upon this AI issuance.

3. Specification

Clause 2.2

'Where the Works include a Contractor's Designed Portion, the Contractor shall:

....complete the design for the Contractor's Designed Portion, including the selection of any specifications for the kinds and standards of the materials, goods and workmanship to be used in the CDP....

....comply with the Architect/Contractor Administrator's directions for the integration of the design of the CDP with the design of the Works as whole.....'

Micheal has clearly cross reference to workmanship and the standards, and also the contractor is also responsible for cross-checking and notify us if there is any questions and issues.

4. Sample on site

Perhaps you had experience about JCT Design and Build contract, so you ask about the sample on site. However, unlike DB16, there are no clauses in SBC 16 referring to an obligation to provide sample (DB cl 2.2.3). If samples are required, the additional provisions would need to be included in the contract.

5. Reasons to re-construct the wall

As Micheal mentioned that overall appearance has some problem, we concerned about our planning permission because its appearance might affects our granted permission - if the appearance is adversely affected, a full planning application is required and it might take 8 weeks.

The walls are setting on the edge of the playing fields and external running track with the dense woodland as backcloth, the construction and appearance is important and affects all pedestrians in terms of appearance and safety.

Please do not hesitate to contact me if you would like to have any clarification on any of these issues or wish to discuss the project further.

Best regards,

Sam Chan
Part II Assistant

Reference:
JCT SBC/Q 2016
Guide to JCT SBC 2016

NDG Architects

EMAIL

Date: 01 March 2021
To: Jack Lumber
Cc:
From: Chan Tsz Wai, Sam
Re: Home Office Solutions

Hi Jack

Good to hearing from you! Your home office sounds very interesting, but I still have a few questions about it:

My personal interest - size and material of your gazebo

Put up small detached buildings such as a garden shed or summerhouse in garden, building regulations will not normally apply if the floor area of the building is less than 15 square metres and contains no sleeping accommodation.

If the floor area of the building is between 15 square metres and 30 square metres, you will not normally be required to apply for building regulations approval providing that the building contains no sleeping accommodation and is either at least one metre from any boundary or it is constructed substantially of non-combustible materials.

The interest of mine is completely subject to your design, please give me more details.

With myself

In principle, I am interested in the possibility of working with you. Whilst I could pursue the work as an individual, I need to check my employment policy with NDG as it may include a clause restricting me from working as an architect for other companies. In addition, the extra work load would need to be carefully managed, so it does not compromise my working hours at NDG.

Personally, the chance to work on additional design projects excites me, especially the potential to develop my portfolio. However, the nature of this project does concern me too, in particular the prospect of going into business with such an important client of NDG. If our relationship falls out during the work, this may affect the relationship between NDG and the client.

With NDG

Though NDG is a private limited liability company. It is a legal entity separate from its members (i.e. shareholders), where the liability of each shareholder is limited to the nominal value of his or her shareholding.

It is possible to consider Cooperative and collaborative arrangements. The terms 'cooperative' and 'collaborative' are used to describe various forms of practice. There are a number of registered architects' cooperatives; these are in effect workers' cooperatives. Those who work in the enterprise both own and control it.

You can liaise with the director, Belinda Carter, directly.

Setting up a separate company

I could offer architectural consultant services. From my professional opinion, this would be best as a limited liability company. Although this may be more labour intensive to set up, it would protect you from liability, meaning that as director you would not be personally liable for debts of the company. It also allows for more flexibility than other company set ups such as Partnerships, because (when the company grows) members of staff can be promoted to director status without

giving them part of the company and if you wish to leave, directors can be removed whilst the company can still continue to operate.

Pros & Cons

Pros to have supports from NDG

Considering the scale of the scheme, I am unsure if we can manage this project as a new company. One of the options is that we can notify the directors of NDG and see whether we can discuss with them if this project could be undertaken by NDG and whether we can lead on this project. Obviously, this means that we will not be getting all of the design fee. However, if we decide to stay in NDG, this may prove to be a good career prospect for us at NDG. In parallel this can also increase the chances of securing the job. As we have won the competition, the client may consider the practicalities of us managing the project, staying with NDG may increase the chances of getting the job.

Cons of set up a separate company

I understand that this will be an amazing opportunity for us to set up our own practice. If we are to set up a practice, from my professional opinion, this would be best as a limited liability company. Although this may be more labour intensive to set up, it would protect us from liability meaning that as director you would not be personally liable for debts of the company. It also allows for more flexibility than other company set ups such as partnership, because members of staff can be promoted to director status without giving them part of the company and if you wish to leave, your directorship can be removed whilst the company can still continue to operate. In addition, prior to making any decision, I believe It will be beneficial to read through the competition particulars and conditions in details together.

There are numerous items to be considered, i have listed a few key points below:

Location- whether the work is done in an home office or a commercial office. I suggest having a commercial office as it would be more professional and appeal more to our client. This can be up to £300 to £1500 per months for a small space in the outskirts of London.
Equipment and software - this includes computer, design software license, copier/printer, plotter, internet and furniture.
Marketing - Website development and hosting.
We should be aiming to achieve some sort of accredited QA system such as ISO 9001:2015 Quality management system in place.

Parties we need to be involved:

- RIBA and ARB for advice
- Lawyers
- Accountants
- PI Insurer
- Practice director

Finance and cash flow

We will need a financial statement that summarise the revenue, costs and expense every fiscal quarter or year. As income for an architectural business will be represented in the form of fee received for the supply of an architectural service.

It is necessary to have a cash-flow forecasting and budgeting system in place, this is for a practice to predict how well it is likely to perform in financial terms in the future.

How are we going to secure new jobs? I believe if we manage to be appointed on this project, the fee will be able to sustain the practice for a long period of time given the project scale. At the end of a business financial year, we will need to prepare annual accounts for auditing. This is to be audited by an independent accountant.

Insurance

In accordance with ARB 4.4 and RIBA Code of Conducts GN 4.1, it is important to have adequate and appropriate insurance cover. The lowest indemnity is normally £250,000 for a new practice. However in our case as the project is estimated £5m the indemnity should

be adjusted.

We also need to consider the following:

- The limit of indemnity
- The people to be covered
- The risk covered
- National insurance

Chartered Practice and Chartered Architect

In order to qualify as an **RIBA Chartered Practice**, each separate office within a practice, or each definable architectural practice business unit within a multifunctional organisation, which wishes to register must pay the annual subscription fee and declare its compliance with the following criteria. In order to retain the accreditation and benefits of an RIBA Chartered Practice these criteria and standards must be continuously maintained:

1. The office is a full-time architects' office, or, a definable architectural practice business unit within a multi-functional organisation, with responsibility to ensure all practice information submitted to the RIBA is up to date and accurate.
2. At least one of the full-time principals (Director or Partner) in the architects' practice must be a Chartered Member of the RIBA. For all UK based practices that Chartered Member must also be registered with the Architects Registration Board.
3. All architectural work must be under the supervision of a Chartered Member of the RIBA. For all UK based work that Chartered Member must also be registered with the Architects Registration Board.
4. At least 1 in 8 of all staff employed in the architect's practice must be a registered architect (on ARB register) or an Associate Member of the RIBA or a Chartered Architectural Technologist (CIAT member) with RIBA Affiliate membership.
5. At least 1 in 10 of all staff employed in the architect's practice must be a Chartered Architect (i.e. RIBA chartered member).
6. The architects' practice must have a current Professional Indemnity Insurance policy appropriate for the work undertaken.
7. The practice and all employees conducts itself in accordance with the Code of Practice for Chartered Practices
8. The architects' practice must have an appropriate CPD Framework in place.
9. The architects' practice must operate an appropriate Quality Management System.

10. The architects' practice must operate an appropriate Health and Safety Policy.

(Though you made a good use of your dad's fully equipped large joinery workshop, please take care of all the people using the workshop in terms of health and safety in workplace.)

11. The architects' practice must operate an appropriate Environmental Management Policy.
12. The architects' practice must operate an Employment Policy which addresses the requirements of the RIBA Chartered Practice Employment Policy Guide.
13. The architects' practice must ensure that at least The Living Wage as set by the Living Wage Foundation (www.livingwage.org.uk), is paid to all architectural students employed within the practice, where the work undertaken is eligible to count towards PEDR.
14. The architects' practice must operate an appropriate Equality, Diversity and Inclusion Policy.

The term 'architect' itself is protected by the Architects Act 1997 which established the Architects Registration Board (ARB). Only qualified individuals that are registered with the ARB can offer their services as architects. Section 20 of the Architects Act states that 'A person shall not practise or carry on business under any name style or title containing the word "architect" unless he is a person registered under this Act'.

The ARB has responsibility for:

- Recognising qualifications.
- Maintaining a list of registered architects and ensuring that people not on the list do not offer their services as an architect.
- Monitoring standards and investigating complaints.

- ARB issues a code of conduct for architects and can take action against those falling short of the code's standards.
- Architects can also become chartered members of the Royal Institute of British Architects (RIBA), but this is voluntary and is not necessary to practice as an architect.

Statutory responsibilities of Chartered Architect

According to the ARB's Architect's code: Standards of Conduct and Practice, an architect is expected to:

- Be honest and act with integrity.
- Be competent.
- Promote their services honestly and responsibly.
- Manage their business competently.
- Consider the wider impact of their work.
- Carry out their work faithfully and conscientiously.
- Be trustworthy and look after their clients' money properly.
- Have appropriate insurance arrangements.
- Maintain the reputation of architects.
- Deal with disputes or complaints appropriately.
- Co-operate with regulatory requirements and investigations.
- Have respect for others.

Advertising for an architect

RB's Architect's code: Standards of Conduct and Practice:

'3.2 In advertising and promoting your professional services you should comply with the codes and principles applying to advertising generally. These include those of the Advertising Standards Authority or any other body having oversight of advertising standards in various media.'

You should be careful to advertise your joinery company.

Professional Indemnity Insurance

The ARB code required that architects maintain 'adequate and appropriate' professional indemnity insurance (PII). The level of PII required will vary considerably depending on the role of the individual and the size and nature of the projects they undertake, however, ARB state that 'in any event an architect is expected to hold a limit of indemnity of no less than £250,000'.

Just let know if any updates. Catch up later.

All the best,

Sam Chan

Reference:

RIBA Chartered Practice Accreditation Criteria and Standards Standards and Enforcement Procedures

RIBA Architect's Handbook of Practice Management

<https://www.designingbuildings.co.uk/wiki/Architect>

NDG Architects

EMAIL

Date: 1 March 2021
 To: Belinda Carter
 Cc:
 From: Chan Tsz Wai, Sam
 Re: Union Street Madchester: Negligence Claim

Dear Belinda,

Refer to your email about the captioned project, enclosed please following information for your process:

A few things I would like to confirm:

- Have we ever signed a formal appointment upon this feasibility study, such as RIBA Professional Service Agreement or A letter of Appointment?
- Have we had any written records, for example, the email (other communicated ways) from Jim Mills for providing us the drawings?

If yes, we are holding some solid evidences to strengthen our stands and prove the claim is invalid.

Assumption:

- This project was under traditional procurement. (JCT SBC/Q 2016)
- We signed Standard Professional Service Agreement 2020 (PSA)

Given that the contractual relationship of Jim Mills and ABC Holdings is Employer and Contractor, and we have no direct contractual relationship with ABC Holdings:

- ➡ 'The client's rights and obligation: The client has a obligation to provide the architect the information which is necessary for the proper and timely performance of the services.' - PSA
- ➡ 'Architect shall be personally liable to the client for any negligence, default or any other liability whatsoever arising from performance of the services'- PSA cl. 7.2.2
- ➡ 'contractor shall be liable for and shall indemnify the employer against, any expense, liability, loss claim or proceedings in respect of any loss, injury or damage whatsoever to any property real or personal in so far as such loss' - SBC cl. 6.2

During the feasibility study, the client lost his obligation to provide us a correct information to conduct our services. Therefore, it is reasonable to us to deny the duty of care to Jim Mills.

However, Collateral warranties are agreements which are associated with another 'primary' contract. They provide or a duty of care to be extended by one of the contracting parties to a third party who is not party to the original contract. I wonder if we signed Collateral Warranties, because we were appointed to only produce feasibility study.

No design team required for Stages 0 and 1. Client advisers may be appointed to the client team to provide strategic advice and design thinking before Stage 2 commences. During the period of feasibility, we were not part of the design team.

'(b) Details of the client brief / requirements, including any restrictions on the project programme or budget notified by the client' - RIBA: Code of Professional Conduct 2019

As our practice strictly follows Code of Professional Conduct, we should provide the relevant evidence. Hence, we had advised the the client to produce a survey by a chartered surveyor practice, I should also provide this evidence while we discuss with PII provider and our solicitor upon this claim.

It is good to notify our insurance provider but please keep this in mind:

- possible to be liable for any work for at least 6 years.
- any contract signed 'under deed' will create a liability period of 12 years and will often state that the agreed limit of indemnity will be maintained for the same period
- the level of cover vary from £100,000 to £10,000,000 and will determine the cost of the cover

Based on the points I mentioned above, I believe the claim is very likely to be invalid. But, of course, our solicitor will advise us about the claim in details.

Please do not hesitate to contact me if you would like to have any clarification on any of these issues or wish to discuss the project further.

Best regards,

Sam Chan
Part II Assistant

Reference:

<https://professionalnegligenceclaimsolicitors.co.uk/riba-property-expert-no-win-no-fee-advice-claims/>

<https://www.architecture.com/knowledge-and-resources/knowledge-landing-page/even-when-it-is-free-giving-advice-could-lead-to-legal-action>

<https://www.designingbuildings.co.uk/wiki/>

[Special purpose vehicles SPV for building development](#)

<https://www.architecture.com/knowledge-and-resources/knowledge-landing-page/supreme-court-ruling-raises-duty-of-care-risk>

NDG Architects

INTEROFFICE MEMO

Date: 2 March 2021
 To: Micheal Hart
 Cc:
 From: Chan Tsz Wai, Sam
 Re: Acorn Centre, Madchester: Re-development of the existing listed building

Dear Belinda,

Refer to your email about the captioned project, here is to share my thoughts about the points you mentioned:

What statutory applications will be required?

As pre-application submission has already been made to the Local Planning Authority, and LPA has already been discussed and comments obtained.

Planning Permission for works affecting the exterior or Change of Use is required:

- Revised use classification albeit some change of use may be permitted by LPA but prior approval will be required.
- 8-13 weeks to process (minor - major projects)
- 16 weeks if there is an Environmental Impact Statement
- Current variation in timescales because of Covid-19
- Generally approval with 'Conditions'
- Valid for 3 years

List building consent is required because It is a criminal offence to carry out work which needs listed building consent without obtaining it beforehand:

- 8-12 weeks to process application (additional information)
- Submission documents may be extensive to provide detailed understanding/justification for the proposed works
- Generally approval with 'Conditions'
- Valid for 3 years

Given the concept proposal you listed, listed building consent may be granted subject to conditions with respect to:

- preservation of particular features of the building, either as part of it or after it is removed
- making good of any damage caused to the building by the works after work is completed
- reconstruction of the building or any parts of it following the proposed works, using the original materials as far as possible, and any alterations within the building as laid down in the conditions

We should find out hat part of the building is listed, because if a building is listed, it is listed in its entirety, which means that both the exterior and the interior are protected. And we need to liaise with English Heritage.

What specific information might we need to produce to explain and justify the proposals for what will be perceived as radical intervention to the listed building?

- A listed building is to be altered or extended in a manner which would affect its character or historic interest
- Like-for-like repair and maintenance using like-for-like materials and techniques

- A building is to be altered, extended or adapted which lies within the curtilage of the listed building
- Substantial Harm : works which remove the reason for listing the building (High Test)
- Less than Substantial Harm : mitigation by public benefit (economic, social or environmental)
- Enhancement : removal of poor interventions and detrimental features
- Make a balanced design

Interior Characteristics	
Full repair, restoration and refurbishment of the listed building	As you are a conservation architect, you understand alteration or extension of a listed building in any manner (including internal) which would affect its character as a building of special architectural or historic interest.
Café located at the lower ground floor with integrated display/interpretation about the site and building	
Flexible teaching and lettable incubation spaces at ground, first and second floor levels	
Appearance Affected	
Community garden and adjustment of external levels within the site boundary	You should be careful about this because they may affect exterior appearance, planning permission might be required.
External and internal signage	
Original structure affected but enhance accessibility	
Reduced lower ground floor to provide improved (and sensible) headroom. We are reducing the existing floor level by approximately 400mm	It is important to state the reason to propose this unless your proposal is to comply with current headroom requirement, and repair the dilapidation of floor.
Rear extension to accommodate level access/lift installation to the upper floors/new toilet and support accommodation	It is a good to propose this for enhancing its accessibility. In addition, any object or structure fixed to the building, and any object or structure within the curtilage of the building, which although not fixed to the building, forms part of the land and has done so since before 1 July 1948, are treated as part of the listed building. It is important to note that the term ‘listed building’ includes: • the building itself • any object or structure fixed to it • any object or structure that has been within the curtilage of the building since 1948

Do we need to carry out any further surveys or investigations?

Yes. Surveys and Reports (Potential programme implications in both carrying out surveys and implementing the works) is needed. Mitigation, watching brief, licensed work and enabling works .

- Bats & Pigeons
 - There are established procedures in dealing with the issue
 - It is a criminal offence to disturb/harm/injure bats
 - NDG must advise the Client to engage/re-engage the Ecological Consultant (licensed) to develop a mitigation strategy which will identify procedures and action.
 - Liaison with the LA Ecologist (Regional) would be required to agree findings/recommendations/appropriate action.
- Environmental Survey

- Ecology Survey
- Drainage Survey Invasive Investigations
- Organ/Chamber Survey
- Ceiling Survey
- Paint Analysis

Who else needs to be formally appointed to the Design Team for the development and implementation stages of the project?

- Conservation Architect Architect
- Quantity Surveyor Structural Engineer
- M&E Engineer CDM-C/Principal Designer Party Wall Surveyor
- Acoustic Consultant
- Access Management Consultant Fire Engineer

Please do not hesitate to contact me if you would like to have any clarification on any of these issues or wish to discuss the project further.

Best regards,

Sam Chan
Part II Assistant

Reference:

<http://www.environmentlaw.org.uk/rte.asp?id=217>

[https://www.hiwwt.org.uk/sites/default/files/](https://www.hiwwt.org.uk/sites/default/files/2018-04/150401%20Wildlife%20gardening%20bat%20boxes%20NB.pdf)

2018-04/150401%20Wildlife%20gardening%20bat%20boxes%20NB.pdf

Wildlife and Countryside Act 1981(WCA)

Countryside and Rights of Way Act 2000 (CROW Act)

Natural Environment and Rural Communities Act 2006 (NERC)

https://ecab.planningportal.co.uk/uploads/1app/guidance/guidance_note-listed_building_consent.pdf

NDG Architects

INTEROFFICE MEMO

Date: 15 December 2021
To: Sue Allen
Cc:
From: Chan Tsz Wai, Sam
Re: New House for Alec Smart

Attachment: Draft letter to the client

Dear Sue,

Refer to your email about the captioned project, here are my thoughts and Draft letter to Alec Smart is attached for comment:

Invoice monthly basis

Review our brief, person days and possible additional works on monthly basis so that we can ask for additional fee and remain our cash-flow in a balance.

Also it is to allocate manpower for each projects because there are a few projects handling in our office.

The key issues relating to the submission of invoices are to:

- issue promptly when they are due;
- ensure they are expected;
- understand the client's approval/payment process;
- ensure clarity/avoid queries;

Strategies for financial matters

Set out below is a list of the principal issues to be covered within the appointment relative to financial matters:

- The fee and the basis for calculating it – lump sum, percentage, hourly charge, etc.
- Cash flow for payment of fees. This might be by way of regular time-related or milestone payments. Monthly instalments are recommended to help the practice's cash flow and provide an 'early warning' of a client who may be having financial difficulties.
- Arrangements for VAT (refer to the 'rate prevailing at the time an account is issued' as opposed to a set percentage – it does change occasionally). The architect needs to ensure that relevant VAT provisions are operated – there are a number of instances, for example foreign commissions, which do not attract VAT.
- Time for settling accounts (RIBA Appointment documents specify 14 days for both consumer and commercial clients).
- Arrangements for payment of interest in the event of late payment of accounts. Arrangements for payment of additional fees for additional services.
- Arrangements for payment of expenses/disbursements. It is important to state very clearly what has been included within, or excluded from, the agreed fee. The practice should consider whether it wishes to charge an additional management/handling charge in respect of expenses/disbursements.

It is worth repeating the observation that, while making money is frequently not the reason that architects go into practice, poor financial control is often the reason they go out of business. Profit is essential as it ensures the practice will continue to exist and grow in the future, and sound financial management, particularly in respect to collection of cash due, is of fundamental importance.

It is also extremely important to take care about who the practice works for – a client who is difficult to work with, who wants to pay low (or no) fees and who is difficult to part from their cash

for work properly undertaken may well be a client not worth having, no matter how good the design opportunity is.

Please do not hesitate to contact me if you would like to have any clarification on any of these issues or wish to discuss the project further.

Best regards,

Sam Chan
Part II Assistant

Reference:
RIBA Architect's Handbook of Practice Management

NDG Architects

Old Mill Building
Madchester
MX1 9DS

DRAFT

15 December 2021

Mr Alec Smart

Xxxx

Dear Mr Smart

Re: New House for Alec Smart

I am writing you a letter to set out the additional works/fee you should pay to NDG Architects Limited and attached a table showing all additional works and fees:

RIBA WORK STAGE	Original Item D Project brief – construction cost, programme	Proposed person days	Actual Item D Project brief – construction cost, programme	Actual person days	Additional Works
Stage 1 Preparation and brief	4 months	5	4 months	10	1. add 70 sq m of additional usable floor area by making the house 5 m wider
Stage 2 - 3 Concept and developed design	4 months	15	4 months	30	2. delayed submission for planning approval by 3 weeks
Stage 4 Tender and technical design	3 months	20	3 months	35	3. 5 person days extra just dealing with the coordination of the design with the client's own contractor for retaining wall
Stage 5 - 6 Construction	12 months	25	15 months	65	4. 10 extra client meetings
Stage 7 Defects and after care	12 months	5	12 months	0	5. 12 weeks longer than expected and we spent 5 person days dealing with the contractors claim at the end of the contract
Total		70		140	
Total cost to office - (Break even point of £400/person/day)		28000		56000	
Add profit @ 25%		7000		14000	
Contract sum	Brief – design of a single dwelling on a sloping site Construction budget £500,00	500000	Brief – design of a single dwelling on a sloping site Construction budget £500,00 + £200,00 for Retaining wall, bath room and kitchen	700000	
Total Fee		35000		49000	
Loss				14000	

Under Clause 5.5 RIBA standard professional services contract 2020, NDG Architect Limited was involved in extra work of incurs extra expense for reasons beyond the architect reasonable control, additional fees shall be calculated on the time basis in accordance with clause 5.24 at rate set out in item G, Fee basis 7% of the final agree contract sum.

The client has obligations under the contract:

- Informing the architect of the project requirements and of any subsequent changes required and agreeing steps to mitigate the consequences (please refer to additional work item(1&2);
- Paying the architect for the services performed (please refer to our actual person days)

Due to the listed loss of our practice, **£14000**, and additional fee, **£28000**, please respond us as soon as possible. Otherwise, we will liaise with our solicitor and legal actions might be taken.

Should you have any queries, please do not hesitate to contact me.

Yours faithfully,

Sam Chan
Part II Assistant

RIBA WORK STAGE	Original Item D Project brief – construction cost, programme	Proposed person days	Actual Item D Project brief – construction cost, programme	Actual person days	Additional Works
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Total Fee		35000		49000	
Loss				14000	

NDG Architects

Old Mill Building
Madchester
MX1 9DS

DRAFT

4 March 2021

Mr A Toole Esq.

Strongarm, Foot and Bowels Solicitors LLP
1st Prime Suite
1 Queen St
Madchester

Dear Mr A Toole Esq

Re: JOLIE CONSTRUCTION LIMITED - IN ADMINISTRATION TAPPERS DANCE STUDIO

I am writing to respond to your letter dated 1st March 2021 about the Final account.

Given that the contract is in the Rectification Period with no significant defects reported and the feedback in use is very positive, we understand you would like to settle the Final Account and will follow the clauses of Rectification Period in the contract to issue Certificate of Making Good of Defects Certificate **within 14 days** subject to the inspection which ensures all defects to be made good.

The Final Certificate will be issued **not later than 2 months** after the end of the Rectification Period.

However, it is important to recap our duties/works as a Contract Administrator, Project Architect and Principal Designer below and explain you the length of time for the relevant period and certificate takes:

The duties of a Contract Administrator

A Contract Administrator is expected to secure the efficient completion of the contract works, and also have a decision making capacity for exercising our professional skill and judgement independently in holding the balance between the employer and the contractor to avoid:

- Negligence in respect of the extent of an extension of time award and loss and expense to be allowed to the contractor
- Over-certification of the value of works that were defective or incomplete
- Failure to advise to make due progress with the contract works
- Wrongly issuing a certificate of practical completion where there remain substantial incomplete or defective works, resulting the incorrect authorisation of payment of retention money to the contractor and prejudicing the employers rights to require further substantial works from the contractor
- Wrongly issuing a notice terminating a building contract
- Wrongly allowing substantial contract works to proceed before the building contract has been signed.
- Carry out Periodic Inspections
- Check Compliance with Contract Documentation
- Condemn work not in accordance with the contract (by Instruction)
- Rectification Period: inspecting and confirming defects

Works of a Project Architect

Though Project Architect does not state the role in JCT Standard Building Contract 2016 with Quantities, but our works are as follows which related to construction quality and defects:

- Writing the specification to complement the drawings; this will include requirements for materials, site procedures and construction technique and so on.
- Liaising with the local authority/building control officer before, during and after construction has been completed.
- Maintaining quality control by visiting the site during construction or ensuring there is a continual on-site presence if warranted by the project.
- Compiling a list of minor defects or omissions at completion for the contractor to rectify
- Contract administration

Work of a Principal Designer

Under CDM 2015, the principal designer is responsible for:

- ensuring that where reasonably practicable, risks are eliminated or controlled through design work,
- passing information to the principal contractor,
- ensuring co-operation and co-ordination,
- ensuring designers comply with their duties,
- preparing the health and safety file which is a vital document that must be presented as part of achieving Practical Completion on a project

Releasing retention

The practical completion certificate has the following important effects:

- It gives rise to the right of release of the first half of the retention percentage (clause 4.20.3).

As Practical completion reached 11 months ago, there is only half of the retention percentage to release.

Rectification period will due on 14th March

Defects(Clause 2.38)

If any defects, shrinkages or other faults in the Works or a Section appear within the relevant Rectification Period due to materials, goods or workmanship not in accordance with this Contract or any failure of the Contractor to comply with his obligations in respect of the Contractor's Designed Portion:

- such defects, shrinkages and other faults shall be specified by the Architect/Contract Administrator in a schedule of defects which he shall deliver to the Contractor as an instruction not later than 14 days after the expiry of that Rectification Period; and .
- notwithstanding clause 2.38.1, the Architect/Contract Administrator may whenever he considers it necessary issue instructions requiring any such defect, shrinkage or other fault to be made good, provided no instructions under this clause 2.38.2 shall be issued after delivery of a schedule of defects or more than 14 days after the expiry of the relevant Rectification Period.

Certificate of Making Good (Clause 2.39)

When in the Architect/Contract Administrator's opinion the defects, shrinkages or other faults in the Works or a Section which he has required to be made good under clause 2.38 have been made good, he shall issue a certificate to that effect (a 'Certificate of Making Good'), and completion of that making good shall for the purposes of this Contract be deemed to have taken place on the date stated in that certificate.

Final Certificate (Clause 4.15)

We, the Contract Administrator, shall issue the Final Certificate not later than 2 months after the end of the Rectification Period in respect of the Works.

Should you have any queries, please do not hesitate to contact me.

Yours sincerely,

Sam Chan
Part II Assistant